



Procedure No: EXP202301323 (AI/00057/2023)

Appeal No: RR/00111/2024

Examined the appeal for reconsideration filed by A.A.A. through the EUROPEAN COMMISSION INTERNAL MARKET INFORMATION SYSTEM (IMI-Austria), against the resolution issued by the Director of the Spanish Agency for Data Protection in procedure AI/00057/2023, for violation of the provisions of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI) and based on the following:

FACTS

FIRST: On January 25, 2024, the Director of the Spanish Agency for Data Protection issued a Resolution for the Filing of Proceedings in procedure AI/00057/2023, opened against the entity TURNER BROADCASTING SYSTEM ESPAÑA, S.L. with CIF: B82320227, holder of the website <https://www.canaltnt.es>, for the alleged violation of Article 22 of the LSSI.

The resolution was notified to the EUROPEAN COMMISSION INTERNAL MARKET INFORMATION SYSTEM (IMI-Austria) on January 29, 2024, as recorded in the file.

SECOND: As proven facts of the aforementioned procedure, the following was recorded:

- Upon attempting to access the website subject to the complaint, <https://www.canaltnt.es>, it was confirmed that it no longer existed, redirecting the user to a new website, <https://www.warnertv.es>, whose holder is the entity Discovery Networks SL, with CIF B-86815560, different from the initially complained entity (Turner Broadcasting System España, with CIF: B82320227).

THIRD: On February 14, 2024, a written appeal for reconsideration was received by this Agency, presented by the appellant, in which the following was stated:

FIRST – Lack of notification by the DSB

1. On January 24, 2024, the AEPD adopted its resolution, which was notified to this party on January 29, 2024. However, according to Article 60(8) GDPR, it is the supervisory authority where the complaint was filed, namely the DSB, that should have adopted and notified the resolution to the interested party in this case.

2. Therefore, the resolution adopted by the AEPD must be considered null and void, as provided for in Article 47(1)(b) LPACAP.

SECOND – The AEPD did not consider the facts or the request of the complaint

3. The AEPD did not consider the specific circumstances of the visit to the website of this party, detailed in the complaint. In fact, it appears that the AEPD decided based on the banner that appeared on the responsible party's website during its own visit.

4. However, the supervisory authority must provide an effective response to the individual situation of the interested party, taking into account the individual circumstances and the facts concerning the complaint filed by the interested party. This is derived from Recital 141 GDPR, Article 77 GDPR, and Article 65(3)(b) of the LOPDGDD.

5. Furthermore, this party requested various measures to be adopted by the AEPD in its complaint (see First Fact). The request formulated specifies what is being sought and underscores the need for an evaluation of the individual situation of this party. In particular, the responsible party continues to process the personal data of this party unlawfully.

6. In light of the configuration of the complaint under Article 77(1) GDPR, which "is conceived as a mechanism capable of effectively protecting the rights and interests of the data subjects," it is beyond doubt that the AEPD should have responded to the requests made by this party. This directly aligns with the provisions of Article 88(2) LPACAP. However, the resolution of the AEPD does not provide a concrete response to the request of this party.

7. Therefore, the resolution must be annulled in accordance with Article 48(1) LPACAP.

B. MATERIAL ASPECTS

THIRD – The AEPD applies an erroneous criterion

8. As stated above, this party visited the responsible party's website and, in addition to not having an equivalent option to reject the use of cookies in the first layer of the banner (type A, C, D, E infringement), it was verified that there was no easy possibility to withdraw the consent granted (type K

infringement).

9. In contrast, in the contested resolution, the AEPD states that during its own visit, the responsible party only installed strictly necessary cookies, so it was not necessary to offer an option to reject cookies, nor an option to withdraw consent.

10. However, upon this party checking the website <https://www.warnertv.es/> again, it is observed that after selecting "Accept" on the banner, the cookies "_ga" and "_ga_1PMD2PL02L" from Google Analytics are installed. These are cookies that can only be installed if valid consent has been obtained (Annex 1).

11. Even though the responsible party has implemented two equivalent options in its cookie banner, it does not offer a permanently visible option that allows for the withdrawal of consent. At the bottom of the main page, there is only a link.

C/ Jorge Juan, 6

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28001 – Madrid

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3/8

to the privacy policy, in which there is a link to the "Individual Rights Request Portal" (in English). In this portal, an email can then be sent to withdraw consent. This does not represent a possibility to "revoke consent easily" and "at any time" as required by Article 7(3) GDPR and as provided by the AEPD Guide regarding the withdrawal of consent.

12. From the above, it follows that the AEPD is based on a verification that is erroneous. The controller uses Google Analytics cookies that are not strictly necessary. Nevertheless, the controller still does not offer a simple way to withdraw consent once given.

13. From what is stated in this legal basis, it results that the criterion adopted in the contested resolution is contrary to the legal system and must be annulled.

By virtue of the above, and in accordance with the mentioned provisions, this party

REQUESTS: I. That the RECOURSE OF REPOSITION be considered filed, in time and form, against the resolution of the Director of the Spanish Agency for Data Protection dated January 24, 2024, within the framework of the procedure with file number EXP202301323, and, after admitting it, the necessary investigative actions be carried out, in accordance with the applicable procedural and material rules. II. That the full nullity of the contested resolution be declared for the reason stated in the first legal basis and that the procedure be continued. III. That, in the event that full nullity is not declared, the contested resolution be annulled for the reasons stated in the legal grounds.

LEGAL GROUNDS

I

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

In relation to the statements made by the appellant, the following should be noted:

First: The appellant alleges in section "First, points 1-2", of the legal grounds of their writing that the resolution should have been made by the Austrian supervisory authority, in accordance with Article 60(8) GDPR and therefore, the resolution adopted by the AEPD must be considered null and void, according to Article 47(1)(b) LPACAP.

C/ Jorge Juan, 6

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4/8

Well, regarding this allegation, it should be clarified that in Spanish Law the "Principle of Normative Speciality" prevails, which essentially refers to the fact that, when there is a special norm (LSSI) and a general norm (GDPR) regulating a specific fact, the former prevails over the latter.

This principle does not imply that, in the case of applying both norms (one general and one special), the first is repealed, but rather that both norms remain simultaneously in force, although the special norm will be applied preferentially to the general norm in those cases contemplated therein.

Regarding the case at hand, such coincidence exists, that is, in the Spanish Legal System, two norms coexist, one of a general nature such as the GDPR and another of a special nature, such as the LSSI, which regulate the same facts.

If we observe what Article 1 of the GDPR establishes, its object is as follows:

1. This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data.
2. This Regulation protects the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data.
3. The free movement of personal data within the Union may not be restricted or prohibited for reasons related to the protection of natural persons with regard to the processing of personal data.

Whereas the object of the LSSI, established in its Article 1, indicates that:

1. The purpose of this Law is to regulate the legal regime of information society services and electronic contracting, regarding the obligations of service providers including those acting as intermediaries in the transmission of content through telecommunications networks, electronic commercial communications, prior and subsequent information to the conclusion of electronic contracts, the conditions relating to their validity and effectiveness, and the sanctioning regime applicable to information society service providers.
2. The provisions contained in this Law shall be understood without prejudice to what is provided in other state or regional regulations outside the coordinated regulatory scope, or that aim to protect public health and safety, including the safeguarding of national defense, consumer interests, the tax regime applicable to information society services, the protection of personal data, and the regulatory framework for competition defense.

For its part, Article 2 of the aforementioned norm (LSSI) establishes that:

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28001 – Madrid

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5/8

1. This Law shall apply to service providers of the information society established in Spain and to the services provided by them. A service provider shall be understood to be established in Spain when its residence or registered office is located in Spanish territory, provided that these coincide with the place where the administrative management and direction of its business is effectively centralized.

Otherwise, attention shall be paid to the place where such management or direction is carried out.

Therefore, in application of the "Principle of Normative Speciality," the specific norm, that is, the LSSI, shall apply over the general norm, the RGPD, since the entity TURNER BROADCASTING SYSTEM ESPAÑA, S.L. with CIF: B82320227, has its headquarters in Spanish territory, as well as the domain of its website (.es). Regarding the competence to know the case, Article 43.1 of the LSSI establishes the following: (...) Likewise, the Spanish Data Protection Agency shall be responsible for imposing sanctions for the commission of the infringements typified in Articles 38.3 c), d) and i) and 38.4 d), g) and h) of this Law(...) and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

Meanwhile, Article 63.2 of the LOPDGDD determines that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures." And the Fourth Additional Provision of said norm establishes, regarding the competencies attributed to the AEPD by other laws, that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Data Protection Agency must process in exercising the competencies

attributed to it by other laws."

Therefore, since the entity being claimed has its registered office in Spanish territory, the Spanish Data Protection Agency is competent to know the claim, based on what is established in Article 43.1 of the LSSI, Article 63.2 of the LOPDGDD, and the Fourth Additional Provision of said norm to the detriment of the Austrian supervisory authority.

Second: The appellant states in the section "Second, points 3-7" of the grounds for appeal in essence that, "the AEPD did not consider the specific circumstances of the visit to the appellant's website, basing its resolution of the file solely on the verification that the AEPD itself made of the information banner that appears on the website, without responding to what was requested in the complaint, forgetting the requests made by the appellant..." To respond to this allegation, we must start from the principle that governs all judicial or administrative proceedings, which is the "Principle of Presumption of Innocence," which guarantees, in Spanish law, not to suffer a sanction that does not have a basis in prior evidentiary activity on which the competent body can ground a reasonable judgment of culpability, and entails, among others...

C/ Jorge Juan, 6

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6/8

other requirements, that the Administration must prove and, therefore, justify, not only the facts constituting the infringement, the participation in such facts, and the circumstances that constitute a criterion for graduation, but also the culpability that justifies the imposition of a sanction (among others, SSTC 76/1990, of April 26; 14/1997, of January 28; 209/1999, of November 29; and 33/2000, of February 14).

Likewise, the STS of July 10, 2007 (rec.306/2002) specifies that it is the administration that must demonstrate culpability since "it is not the interested party who must prove the lack of culpability."

The presumption of innocence, a fundamental right of citizens according to Article 24.2 of the Spanish Constitution and Article 6.2 of the European Convention on Human Rights, is expressly included in our legal system for sanctioning administrative procedures where among the rights of the interested party in the sanctioning administrative procedure is the right "To the presumption of non-existence of administrative responsibility until proven otherwise."

As stated in the STS 28.04.2016 (RC 677/2014): "It should be noted that the right to the presumption of innocence, which applies without exception in the field of sanctioning administrative procedures, as referred to by the Constitutional Court in judgment 66/2007, of March 27, entails that 'no sanction may be imposed that does not have a foundation in prior lawful evidentiary activity,' and also implies the recognition of the right to a due sanctioning administrative procedure with all guarantees, which respects the principle of contradiction and in which the presumed responsible party has the opportunity to defend their own positions, prohibiting the initiation of sanctioning proceedings when it is clearly or manifestly appreciable that there are no rational indications that an infringing conduct has been committed, or in cases where unlawfulness or culpability is absent."

What the Public Administration cannot do is impose administrative responsibility based on the facts presented by the claimant, without first verifying their truthfulness. In the case at hand, this verification was based on the review of the website subject to the complaint (<https://www.canaltnt.es>), where it was found that it no longer existed, redirecting the user to a new website belonging to a different owner.

Third: The appellant states in section "Third.- points 8 to 13" that upon checking the new website <https://www.warnertv.es/>, it is observed that after selecting "Accept" on the banner, the cookies "_ga" and "_ga_1PMD2PL02L" from Google Analytics are installed, which are not strictly necessary and that there is no possibility of withdrawing consent once given.

First of all, we must mention that the website <https://www.warnertv.es>, which the appellant refers to in their appeal for reconsideration, was not the website subject to the initial complaint, so its analysis is not appropriate in the context of this appeal for reconsideration.

C/ Jorge Juan, 6

Notwithstanding the above, it is worth recalling that, although this new website (<https://www.warnertv.es>) is mentioned because when attempting to access the website subject to the initial complaint <https://www.canaltnt.es>, it redirected the user to the new page.

Now, the appellant states that, on this new website <https://www.warnertv.es>, it observes that when the user gives consent, the website begins to use two new cookies that are not of a technical nature (“_ga” and “_ga_1PMD2PL02L”) whose domain belongs to Google Analytics, and that there is no possibility of withdrawing consent once given, requesting this Agency to carry out the necessary investigative actions to clarify the facts being claimed.

Therefore, this is a new fact not mentioned in the initial complaint. The appellant cannot expect that in the appeal phase, facts that were not stated in a previous procedural phase will be taken into account. The LPACAP provides in its article 118 the following procedural rule: “Facts, documents, or allegations of the appellant will not be taken into account in the resolution of appeals when, having been able to present them in the allegations phase, they have not done so. The practice of evidence may also not be requested when its failure to be carried out in the procedure in which the contested resolution was issued is attributable to the interested party.” This rule contains a provision that is nothing more than the positive specification for the common administrative sphere of the general principle that the law does not protect the abuse of rights (article 7.2 of the Civil Code). This principle aims, among other things, to prevent the allegations and evidence phase of the applicable procedures from becoming futile, as it would if the interested parties could choose, at their discretion, the moment to present evidence and allegations, since this would be contrary to a basic procedural order.

All of this, without prejudice to the possibility of submitting a new complaint if they believe that such facts violate norms that confer powers to the Spanish Agency for Data Protection.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having reviewed the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A., through the EUROPEAN COMMISSION MARKET INTERCHANGE SYSTEMS (IMI- Austria), against the resolution of dismissal issued by the Director of the Spanish Agency for Data Protection on 25/01/24, in procedure AI/00057/2023,

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8/8

SECOND: TO NOTIFY this resolution to A.A.A. and to the EUROPEAN COMMISSION MARKET INTERCHANGE SYSTEMS (IMI- Austria), in accordance with art. 77.2 of the GDPR.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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